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low, 457 U.S., at 817. As a result, policing certain events like an unruly protest would pose overwhelming litigation risks. Any inartful turn of phrase or perceived slight during a legitimate arrest could land an officer in years of litigation. Bartlett's standard would thus "dampen the ardor of all but the most resolute, or the most irresponsible, in the unflinching discharge of their duties." *Gregoire v. Biddle*, 177 F.2d 579, 581 (CA2 1949) (Learned Hand, C. J.). It would also compromise evenhanded application of the law by making the constitutionality of an arrest "vary from place to place and from time to time" depending on the personal motives of individual officers. *Devenpeck*, 543 U.S., at 154. Yet another "predictable consequence" of such a rule is that officers would simply minimize their communication during arrests to avoid having their words scrutinized for hints of improper motive—a result that would leave everyone worse off. *Id.*, at 155.

Adopting *Hartman*'s no-probable-cause rule in this closely related context addresses those familiar concerns. Absent such a showing, a retaliatory arrest claim fails. But if the plaintiff establishes the absence of probable cause, "then the *Mt. Healthy* test governs: The plaintiff must show that the retaliation was a substantial or motivating factor behind the [arrest], and, if that showing is made, the defendant can prevail only by showing that the [arrest] would have been initiated without respect to retaliation." *Lozman*, 585 U.S., at 97 (citing *Hartman*, 547 U.S., at 265–266).¹

¹JUSTICE SOTOMAYOR would have us extend *Mt. Healthy* and rely on that "tried and true" approach as the exclusive standard in the retaliatory arrest context. See *post*, at 421–425, 433–434 (dissenting opinion). But not even respondent Bartlett argues for such a rule. And since our decisions in *Hartman* and *Reichle*, no court of appeals has applied that approach in retaliatory arrest cases of this sort. JUSTICE SOTOMAYOR criticizes the Court for spending "[m]uch of its opinion . . . analogizing to *Hartman*," *post*, at 424, but of course *Hartman* is our precedent most directly on point. To the extent retaliatory arrest cases raise concerns distinct from that

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C

Our conclusion is confirmed by the common law approach to similar tort claims. When defining the contours of a claim under § 1983, we look to “common-law principles that were well settled at the time of its enactment.” *Kalina v. Fletcher*, 522 U. S. 118, 123 (1997); *Manuel v. Joliet*, 580 U. S. 357, 370 (2017) (common law principles “guide” the definition of claims under § 1983).

As the parties acknowledge, when § 1983 was enacted in 1871, there was no common law tort for retaliatory arrest based on protected speech. See Brief for Petitioners 43; Brief for Respondent 20. We therefore turn to the common law torts that provide the “closest analogy” to retaliatory arrest claims. *Heck v. Humphrey*, 512 U. S. 477, 484 (1994). The parties dispute whether the better analog is false imprisonment or malicious prosecution. At common law, false imprisonment arose from a “detention without legal process,” whereas malicious prosecution was marked “by *wrongful institution* of legal process.” *Wallace v. Kato*, 549 U. S. 384, 389–390 (2007).² Here, both claims suggest the same result: The presence of probable cause should generally defeat a First Amendment retaliatory arrest claim. See generally *Lozman*, 585 U. S., at 104–107 (THOMAS, J., dissenting).

Malicious prosecution required the plaintiff to show that the criminal charge against him “was unfounded, and that it was made without reasonable or probable cause, and that the defendant in making or instigating it was actuated by malice.” *Wheeler v. Nesbitt*, 24 How. 544, 549–550 (1861); see

precedent, we have departed from *Hartman* to afford greater First Amendment protection. See *infra*, at 406–408.

²For our purposes, we need not distinguish between the torts of false imprisonment and false arrest, which are “virtually synonymous.” 35 C. J. S., False Imprisonment § 2, p. 522 (2009); see also *Wallace*, 549 U. S., at 388–389.

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also Restatement of Torts § 653 (1938). It has long been “settled law” that malicious prosecution requires proving “the want of probable cause,” and Bartlett does not argue otherwise. *Brown v. Selfridge*, 224 U. S. 189, 191 (1912); see also *Wheeler*, 24 How., at 550 (noting that “[w]ant of reasonable and probable cause” is an “element in the action for a malicious criminal prosecution”).

For claims of false imprisonment, the presence of probable cause was generally a complete defense for peace officers. See T. Cooley, *Law of Torts* 175 (1880); 1 F. Hilliard, *The Law of Torts or Private Wrongs* 207–208, and n. (a) (1859). In such cases, arresting officers were protected from liability if the arrest was “privileged.” At common law, peace officers were privileged to make warrantless arrests based on probable cause of the commission of a felony or certain misdemeanors. See Restatement of Torts §§ 118, 119, 121 (1934); see also Cooley, *Law of Torts*, at 175–176 (stating that peace officers who make arrests based on probable cause “will be excused, even though it appear afterwards that in fact no felony had been committed”); see generally *Atwater*, 532 U. S., at 340–345 (reviewing the history of warrantless arrests for misdemeanors). Although the exact scope of the privilege varied somewhat depending on the jurisdiction, the consistent rule was that officers were not liable for arrests they were privileged to make based on probable cause.

D

Although probable cause should generally defeat a retaliatory arrest claim, a narrow qualification is warranted for circumstances where officers have probable cause to make arrests, but typically exercise their discretion not to do so. In such cases, an unyielding requirement to show the absence of probable cause could pose “a risk that some police officers may exploit the arrest power as a means of suppressing speech.” *Lozman*, 585 U. S., at 99.

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When § 1983 was adopted, officers were generally privileged to make warrantless arrests for misdemeanors only in limited circumstances. See Restatement of Torts § 121, Comments *e, h*, at 262–263. Today, however, “statutes in all 50 States and the District of Columbia permit warrantless misdemeanor arrests” in a much wider range of situations—often whenever officers have probable cause for “even a very minor criminal offense.” *Atwater*, 532 U. S., at 344–345, 354; see *id.*, at 355–360 (listing state statutes).

For example, at many intersections, jaywalking is endemic but rarely results in arrest. If an individual who has been vocally complaining about police conduct is arrested for jaywalking at such an intersection, it would seem insufficiently protective of First Amendment rights to dismiss the individual’s retaliatory arrest claim on the ground that there was undoubted probable cause for the arrest. In such a case, because probable cause does little to prove or disprove the causal connection between animus and injury, applying *Hartman*’s rule would come at the expense of *Hartman*’s logic.

For those reasons, we conclude that the no-probable-cause requirement should not apply when a plaintiff presents objective evidence that he was arrested when otherwise similarly situated individuals not engaged in the same sort of protected speech had not been. Cf. *United States v. Armstrong*, 517 U. S. 456, 465 (1996). That showing addresses *Hartman*’s causal concern by helping to establish that “non-retaliatory grounds [we]re in fact insufficient to provoke the adverse consequences.” 547 U. S., at 256. And like a probable cause analysis, it provides an objective inquiry that avoids the significant problems that would arise from reviewing police conduct under a purely subjective standard. Because this inquiry is objective, the statements and motivations of the particular arresting officer are “irrelevant” at this stage. *Devenpeck*, 543 U. S., at 153. After making the required showing, the plaintiff’s claim may proceed in the

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same manner as claims where the plaintiff has met the threshold showing of the absence of probable cause. See *Lozman*, 585 U. S., at 97.

* * *

In light of the foregoing, Bartlett's retaliation claim cannot survive summary judgment. As an initial matter, the record contains insufficient evidence of retaliation on the part of Trooper Weight. The *only* evidence of retaliatory animus identified by the Ninth Circuit was Bartlett's affidavit stating that Sergeant Nieves said "bet you wish you would have talked to me now." 712 Fed. Appx., at 616. But that allegation about *Nieves* says nothing about what motivated *Weight*, who had no knowledge of Bartlett's prior run-in with Nieves. Cf. *Lozman*, 585 U. S., at 99 (plaintiff "likely could not have maintained a retaliation claim against the arresting officer" when there was "no showing that the officer had any knowledge of [the plaintiff's] prior speech").

In any event, Bartlett's claim against both officers cannot succeed because they had probable cause to arrest him. As the Court of Appeals explained:

"When Sergeant Nieves initiated Bartlett's arrest, he knew that Bartlett had been drinking, and he observed Bartlett speaking in a loud voice and standing close to Trooper Weight. He also saw Trooper Weight push Bartlett back. . . . [T]he test is whether the information the officer had at the time of making the arrest gave rise to probable cause. We agree with the district court that it did; a reasonable officer in Sergeant Nieves's position could have concluded that Bartlett stood close to Trooper Weight and spoke loudly in order to challenge him, provoking Trooper Weight to push him back." 712 Fed. Appx., at 615 (citations and internal quotation marks omitted).

Because there was probable cause to arrest Bartlett, his retaliatory arrest claim fails as a matter of law. Accord-

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ingly, the judgment of the United States Court of Appeals for the Ninth Circuit is reversed, and the case is remanded for further proceedings consistent with this opinion.

It is so ordered.

JUSTICE THOMAS, concurring in part and concurring in the judgment.

When 42 U. S. C. § 1983 was enacted, “the common law recognized probable cause as an important element for ensuring that arrest-based torts did not unduly interfere with the objectives of law enforcement.” *Lozman v. Riviera Beach*, 585 U. S. 87, 106 (2018) (THOMAS, J., dissenting). Applying that principle resolves this case: “[P]laintiffs bringing a First Amendment retaliatory-arrest claim under § 1983 should have to plead and prove a lack of probable cause.” *Id.*, at 107. The Court acknowledges as much, *ante*, at 405–406, and I join the portions of the Court’s opinion adopting that rule.* I do not join Part II–D, however, because I do not agree that “a narrow qualification is warranted for circumstances where officers have probable cause to make arrests, but typically exercise their discretion not to do so.” *Ante*, at 406. That qualification has no basis in either the common law or our First Amendment precedents.

As the Court explains, “[w]hen defining the contours of a claim under § 1983, we look to ‘common-law principles that were well settled at the time of its enactment.’” *Ante*, at 405. Because no common-law tort for retaliatory arrest in violation of the freedom of speech existed when § 1983 was enacted, we “look to the common-law torts that ‘provid[e] the closest analogy’ to this claim.” *Lozman*, 585 U. S., at 104 (opinion of THOMAS, J.). Here, those torts are false

*Because no party questions whether § 1983 claims for retaliatory arrests under the First Amendment are actionable, I assume that § 1983 permits such claims. See *Lozman v. Riviera Beach*, 585 U. S. 87, 104, n. 2 (2018) (THOMAS, J., dissenting).

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imprisonment, malicious arrest, and malicious prosecution. *Ibid.*

The existence of probable cause generally excused an officer from liability for these three torts, without regard to the treatment of similarly situated individuals. For instance, a constable who made an arrest “on reasonable grounds of belief” that a felony had been committed was “excused” from liability for false imprisonment. T. Cooley, *Law of Torts* 175 (1879) (Cooley); *Lozman, supra*, at 105 (opinion of THOMAS, J.). And the absence of probable cause was central to both malicious arrest and malicious prosecution. Cooley 180–181; *Lozman, supra*, at 106 (opinion of THOMAS, J.). As the Court puts it, “the consistent rule was that officers were not liable for arrests they were privileged to make based on probable cause.” *Ante*, at 406.

Rather than adhere to this rule, the majority carves out an exception to the no-probable-cause requirement for plaintiffs who “presen[t] objective evidence” that they were “arrested when otherwise similarly situated individuals not engaged in the same sort of protected speech had not been.” *Ante*, at 407. The common law provides no support for this exception. Indeed, the majority cites not a single common-law case that supports imposing liability based on an officer’s treatment of similarly situated individuals. The majority instead suggests that its exception responds to the fact that States today “‘permit warrantless misdemeanor arrests’” for many “‘minor criminal offense[s],’” whereas “[w]hen § 1983 was adopted, officers were generally privileged to make warrantless arrests for misdemeanors only in limited circumstances.” *Ibid.* But discomfort with the number of warrantless arrests that are privileged today is an issue for state legislatures, not a license for this Court to fashion an exception to a previously “consistent rule.” *Ante*, at 406.

The majority’s exception is also untethered from our First Amendment precedents. In *Hartman v. Moore*, 547 U.S. 250 (2006), we expressly declined to create *any* exceptions

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to the rule that a plaintiff alleging retaliatory prosecution in violation of the First Amendment must plead and prove the absence of probable cause. See *id.*, at 264–266, and n. 10. The majority today imports its “qualification” from our jurisprudence on selective-prosecution claims. *Ante*, at 406, 407 (citing *United States v. Armstrong*, 517 U. S. 456, 465 (1996)). But “[t]he requirements for a selective-prosecution claim draw on ‘ordinary equal protection standards,’” not the First Amendment. *Id.*, at 465. That jurisprudence therefore is not relevant here. Cf. *Whren v. United States*, 517 U. S. 806, 813 (1996) (“[T]he constitutional basis for objecting to intentionally discriminatory application of laws is the Equal Protection Clause . . .”).

With no guidance from the common law or relevant precedents, the majority crafts its exception as a matter of policy. But this “narrow” qualification threatens to derail our retaliation jurisprudence in several ways. For one, although the majority’s stated concern is with “‘warrantless misdemeanor arrests’” for “‘very minor’” offenses like “jaywalking,” *ante*, at 407, its exception apparently applies to *all* offenses, including serious felonies. This overbroad exception thus is likely to encourage protracted litigation about which individuals are “similarly situated,” *ibid.*, while doing little to vindicate First Amendment rights. Moreover, the majority’s rule risks chilling law enforcement officers from making arrests for fear of liability, thus flouting the reasoning behind the emphasis on probable cause in arrest-based torts at common law. *Lozman, supra*, at 105 (opinion of THOMAS, J.). In short, the majority’s exception lacks the support of history, precedent, and sound policy.

* * *

The requirement that plaintiffs bringing First Amendment retaliatory-arrest claims plead and prove the absence of probable cause is supported by the common law and our First Amendment precedents. The majority’s new excep-

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tion has no basis in either. Accordingly, I join all but Part II–D of the majority opinion.

JUSTICE GORSUCH, concurring in part and dissenting in part.

No one agrees who started the trouble at the 2014 Alaska Arctic Man Festival, but everyone agrees two troopers ended it by arresting Russell Bartlett for harassing one of them. And it's that arrest that led to this lawsuit. Mr. Bartlett alleges that the *real* reason the troopers arrested him had nothing to do with harassment and everything to do with his decision to exercise his First Amendment free speech rights by voicing his opinions to the troopers. Mr. Bartlett contends that the officers' retaliation against his First Amendment protected speech entitles him to damages under 42 U.S.C. § 1983. For their part, the troopers insist that the fact they had probable cause to arrest Mr. Bartlett for some crime, or really any crime, should be enough to shield them from liability.

The parties approach their dispute from some common ground. Both sides accept that an officer violates the First Amendment when he arrests an individual in retaliation for his protected speech. They seem to agree, too, that the presence of probable cause does not undo that violation or erase its significance. And for good reason. History shows that governments sometimes seek to regulate our lives finely, acutely, thoroughly, and exhaustively. In our own time and place, criminal laws have grown so exuberantly and come to cover so much previously innocent conduct that almost anyone can be arrested for something. If the state could use these laws not for their intended purposes but to silence those who voice unpopular ideas, little would be left of our First Amendment liberties, and little would separate us from the tyrannies of the past or the malignant fiefdoms of our own age. The freedom to speak without risking arrest is

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“one of the principal characteristics by which we distinguish a free nation.” *Houston v. Hill*, 482 U. S. 451, 463 (1987).

So if probable cause can’t erase a First Amendment violation, the question becomes whether its presence at least forecloses a civil claim for damages as a statutory matter under § 1983. But look at that statute as long as you like and you will find no reference to the presence or absence of probable cause as a precondition or defense to any suit. Instead, the statute imposes liability on anyone who, under color of state law, subjects another person “to the deprivation of any rights, privileges, or immunities secured by the Constitution.” Maybe it would be good policy to graft a no-probable-cause requirement onto the statute, as the officers insist; or maybe not. Either way, that’s an appeal better directed to Congress than to this Court. Our job isn’t to write or revise legislative policy but to apply it faithfully.

Admittedly, though, that’s not quite the end of the statutory story. Courts often assume that Congress adopts statutes against the backdrop of the common law. And, for this reason, we generally read § 1983’s terms “in harmony with general principles of tort immunities and defenses” that existed at the time of the statute’s adoption. *Imbler v. Pachtman*, 424 U. S. 409, 418 (1976). As the officers before us are quick to point out, too, law enforcement agents who made a lawful arrest at the time of § 1983’s adoption couldn’t be held liable at common law for the tort of false arrest or false imprisonment. Of course, at common law a police officer often needed a warrant to execute a lawful arrest. But today warrantless arrests are often both authorized by state law and permitted by the Constitution (as this Court has interpreted it), so long as the officer possesses probable cause to believe a crime has been committed. And, given this development, you might wonder if the presence of probable cause should be enough to foreclose any First Amendment claim arising out of an arrest.

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But that much doesn't follow. As the officers' own reasoning exposes, the point of the common law tort of false arrest or false imprisonment was to remedy arrests and imprisonments effected *without lawful authority*. See *Director General of Railroads v. Kastenbaum*, 263 U. S. 25, 27 (1923); accord, Brief for United States as *Amicus Curiae* 9. So maybe probable cause should be enough today to defeat claims for false arrest or false imprisonment, given that arrests today are usually legally authorized if supported by probable cause. But that doesn't mean probable cause is *also* enough to defeat a First Amendment retaliatory arrest claim. The point of *this* kind of claim isn't to guard against officers who *lack* lawful authority to make an arrest. Rather, it's to guard against officers who *abuse* their authority by making an otherwise lawful arrest for an unconstitutional *reason*.

Here's another way to look at it. The common law tort of false arrest translates more or less into a *Fourth* Amendment claim. That's because our precedent considers a warrantless arrest unsupported by probable cause—the sort that gave rise to a false arrest claim at common law—to be an unreasonable seizure in violation of the Fourth Amendment. See *Manuel v. Joliet*, 580 U. S. 357, 368 (2017). But the *First* Amendment operates independently of the Fourth and provides different protections. It seeks not to ensure lawful authority to arrest but to protect the freedom of speech.

Here's a way to test the point, too. Everyone accepts that a detention based on race, *even one otherwise authorized by law*, violates the Fourteenth Amendment's Equal Protection Clause. In *Yick Wo v. Hopkins*, 118 U. S. 356 (1886), for example, San Francisco jailed many Chinese immigrants for operating laundries without permits but took no action against white persons guilty of the same infraction. Even if probable cause existed to believe the Chinese immigrants had broken a valid law—even if they had *in fact* violated the law—this Court held that the city's discriminatory enforce-

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ment violated the Fourteenth Amendment. *Id.*, at 373–374; see also *Whren v. United States*, 517 U. S. 806, 813 (1996). Following our lead, the courts of appeals have recognized that § 1983 plaintiffs alleging racially selective arrests in violation of the Fourteenth Amendment don’t have to show a lack of probable cause, even though they might have to show a lack of probable cause to establish a violation of the Fourth Amendment: “[S]imply because a practice passes muster under the Fourth Amendment (arrest based on probable cause) does not mean that unequal treatment with respect to that practice is consistent with equal protection.” *Hedgpeth v. Washington Metropolitan Area Transit Auth.*, 386 F. 3d 1148, 1156 (CA DC 2004); see also *Gibson v. Superintendent of N. J. Dept. of Law and Public Safety–Div. of State Police*, 411 F. 3d 427, 440 (CA3 2005); *Marshall v. Columbia Lea Regional Hospital*, 345 F. 3d 1157, 1166 (CA10 2003); *Vakilian v. Shaw*, 335 F. 3d 509, 521 (CA6 2003); *Johnson v. Crooks*, 326 F. 3d 995, 999–1000 (CA8 2003); *Holland v. Portland*, 102 F. 3d 6, 11 (CA1 1996).

I can think of no sound reason why the same shouldn’t hold true here. Like a Fourteenth Amendment selective arrest claim, a First Amendment retaliatory arrest claim serves a different purpose than a Fourth Amendment unreasonable arrest claim, and that purpose does not depend on the presence or absence of probable cause. We thus have no legitimate basis for engrafting a no-probable-cause requirement onto a First Amendment retaliatory arrest claim.

But while it would be a mistake to think the absence of probable cause is an essential element of a First Amendment retaliatory arrest claim under § 1983—or that the presence of probable cause is an absolute defense to such a claim—I acknowledge that it may also be a mistake to assume probable cause is entirely irrelevant to the analysis. It seems to me that probable cause to arrest could still bear on the claim’s viability in at least two ways that warrant further exploration in future cases.

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First, consider causation. To show an arrest violated the First Amendment, everyone agrees a plaintiff must prove the officer would not have arrested him but for his protected speech. And if the only offense for which probable cause to arrest existed was a minor infraction of the sort that wouldn't normally trigger an arrest in the circumstances—or if the officer couldn't identify a crime for which probable cause existed until well after the arrest—then causation might be a question for the jury. By contrast, if the officer had probable cause at the time of the arrest to think the plaintiff committed a serious crime of the sort that would nearly always trigger an arrest regardless of speech, then (absent extraordinary circumstances) it's hard to see how a reasonable jury might find that the plaintiff's speech caused the arrest. In cases like that, it would seem that officers often will be entitled to dismissal on the pleadings or summary judgment.

In the name of causation concerns, the officers ask us to go further still and hold that a plaintiff can *never* prove protected speech caused his arrest without first showing that the officers lacked probable cause to make an arrest. But that absolute rule doesn't wash with common experience. No one doubts that officers regularly choose against making arrests, especially for minor crimes, even when they possess probable cause. So the presence of probable cause does not necessarily negate the possibility that an arrest was caused by unlawful First Amendment retaliation.

If logic doesn't support their argument, the officers reply, at least precedent does. They point to *Hartman v. Moore*, 547 U. S. 250 (2006), where the plaintiff alleged that a law enforcement officer retaliated against him for his speech by convincing a prosecutor to bring criminal charges against him. This Court held the claim presented a “distinct problem of causation” that could be overcome only with proof that the prosecutor lacked probable cause for the charges.

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Id., at 263. And as a matter of precedent, the officers argue, what was true there should hold true here.

But *Hartman* does not demand nearly as much of us as the officers suggest. *Hartman* justified its rule by explaining that the “causal connection required” in that case wasn’t just between the officer’s retaliatory intent and his *own* injurious action. Instead, it was between the officer’s intent and the injurious action of *the prosecutor*, whose charging decision was subject to a “presumption of regularity.” *Id.*, at 262–263. In that particular context, *Hartman* said, proof that the prosecutor lacked probable cause was necessary to “bridge the gap between the [officer’s] motive and the prosecutor’s action.” *Id.*, at 263. But *Hartman* made equally clear that its reasoning did *not* extend to “ordinary retaliation claims, where the government agent allegedly harboring the animus is also the individual allegedly taking the adverse action.” *Id.*, at 259–260. And *that* describes a retaliatory arrest claim like Mr. Bartlett’s to a tee. So while probable cause may wind up defeating causation in some retaliatory arrest cases, nothing in our precedent (let alone logic) suggests that causation is always unprovable just because the officer had probable cause to arrest.

Second, our precedent suggests the possibility that probable cause may play a role in light of the separation of powers and federalism. In *United States v. Armstrong*, 517 U. S. 456 (1996), a plaintiff alleged that he was prosecuted because of his race. This Court responded by acknowledging that racially selective prosecutions can violate the Equal Protection Clause even when the prosecutor possesses probable cause to believe a crime has been committed. But because the decision whether to institute criminal charges is one our Constitution vests in state and federal executive officials, not judges, this Court also held that, to respect the separation of powers and federalism, a plaintiff must present “‘clear evidence’” of discrimination when a federal or state official

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possesses probable cause to support his prosecution. *Id.*, at 465. Explaining the content of the clear evidence requirement, this Court indicated that a plaintiff generally must produce evidence that the prosecutor failed to charge other similarly situated persons. At the same time, however, the Court also suggested that equally clear evidence in the form of “‘direct admissions by prosecutors of discriminatory purpose’” might be enough to allow a claim to proceed. *Id.*, at 469, n. 3 (alterations omitted).

Though this case involves a retaliatory arrest claim rather than a selective prosecution claim, it’s at least an open question whether the concerns that drove this Court’s decision in *Armstrong* may be in play here. No one before us argues that *Armstrong* was wrongly decided. And the Court today seems to indicate that something like *Armstrong*’s standard might govern a retaliatory arrest claim when probable cause exists to support an arrest. See *ante*, at 407 (citing *Armstrong*). Some courts of appeals, too, have already applied *Armstrong* to claims alleging selective arrest under the Fourteenth Amendment. See, e. g., *United States v. Mason*, 774 F. 3d 824, 829–830 (CA4 2014); *United States v. Alcaraz-Arellano*, 441 F. 3d 1252, 1264 (CA10 2006); *Johnson*, 326 F. 3d, at 1000.

At the same time, enough questions remain about *Armstrong*’s potential application that I hesitate to speak definitively about it today. Some courts of appeals have argued that *Armstrong* should not extend, at least without qualification, beyond prosecutorial decisions to arrests by police. These courts have suggested that the presumptions of regularity and immunity that usually attach to official prosecutorial decisions do not apply equally in the less formal setting of police arrests. They’ve reasoned, too, that comparative data about similarly situated individuals may be less readily available for arrests than for prosecutorial decisions, and that other kinds of evidence—such as an officer’s questions and comments to the defendant—may be equally if not more

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probative in the arrest context. See, e. g., *United States v. Sellers*, 906 F. 3d 848, 856 (CA9 2018); *United States v. Washington*, 869 F. 3d 193, 219 (CA3 2017); *United States v. Davis*, 793 F. 3d 712, 720–721 (CA7 2015); *Marshall*, 345 F. 3d, at 1168. Importantly, we did not grant certiorari to resolve exactly how *Armstrong* might apply to retaliatory arrest claims. Nor did the briefing before us explore the competing arguments in this circuit split. And given all this, I believe it would be rash for us to do more at this point than acknowledge the possibility of *Armstrong*’s application.

Dissenting, JUSTICE SOTOMAYOR reads the majority opinion as adopting a rigid rule (more rigid, in fact, than *Armstrong*’s) that First Amendment retaliatory arrest plaintiffs who can’t prove the absence of probable cause must produce “comparison-based evidence” in every case. *Post*, at 424. But I do not understand the majority as going that far. The only citation the majority offers in support of its new standard is *Armstrong*, which expressly left open the possibility that other kinds of evidence, such as admissions, might be enough to allow a claim to proceed. Given that, I retain hope that lower courts will apply today’s decision “commonsensically,” *post*, at 432, and with sensitivity to the competing arguments about whether and how *Armstrong* might apply in the arrest setting.

For today, I believe it is enough to resolve the question on which we *did* grant certiorari—whether “probable cause defeats . . . a First Amendment retaliatory-arrest claim under § 1983.” Pet. for Cert. i. I would hold, as the majority does, that the absence of probable cause is not an absolute requirement of such a claim and its presence is not an absolute defense. At the same time, I would also acknowledge that this does not mean the presence of probable cause is categorically irrelevant: It may bear on causation, and it may play a role under *Armstrong*. But rather than attempt to sort out precisely when and how probable cause plays a role in First Amendment claims, I would reserve decision on

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those questions until they are properly presented to this Court and we can address them with the benefit of full adversarial testing.

JUSTICE GINSBURG, concurring in the judgment in part and dissenting in part.

Arrest authority, as several decisions indicate, can be abused to disrupt the exercise of First Amendment speech and press rights. See, *e. g.*, *Lacey v. Maricopa County*, 693 F. 3d 896, 907–910 (CA9 2012) (en banc) (newspaper publishers alleged they were arrested in nighttime raid after publishing story on law enforcement’s investigation of the newspaper); *Roper v. New York*, 2017 WL 2483813, *1 (SDNY, June 7, 2017) (photographers documenting Black Lives Matter protest alleged they were arrested for standing in street and failing to use crosswalk; sidewalks and crosswalks were blocked by police); *Morse v. San Francisco Bay Area Rapid Transit Dist. (BART)*, 2014 WL 572352, *1–*7 (ND Cal., Feb. 11, 2014) (only journalist arrested at protest was journalist critical of Bay Area Rapid Transit Police). Given the array of laws proscribing, *e. g.*, breach of the peace, disorderly conduct, obstructing public ways, failure to comply with a peace officer’s instruction, and loitering, police may justify an arrest as based on probable cause when the arrest was in fact prompted by a retaliatory motive. If failure to show lack of probable cause defeats an action under 42 U.S.C. §1983, only entirely baseless arrests will be checked. I remain of the view that the Court’s decision in *Mt. Healthy City Bd. of Ed. v. Doyle*, 429 U.S. 274 (1977), strikes the right balance: The plaintiff bears the burden of demonstrating that unconstitutional animus was a motivating factor for an adverse action; the burden then shifts to the defendant to demonstrate that, even without any impetus to retaliate, the defendant would have taken the action complained of. See *Hartman v. Moore*, 547 U.S. 250, 266–267 (2006) (GINSBURG, J., dissenting).

SOTOMAYOR, J., dissenting

In this case, I would reverse the Ninth Circuit’s judgment as to Trooper Weight. As the Court points out, the record is bereft of evidence of retaliation on Weight’s part. See *ante*, at 408. As to Sergeant Nieves, there is some evidence of animus in Nieves’ statement, “bet you wish you would have talked to me now,” App. 376, but perhaps not enough to survive summary judgment. Cf. *Higginbotham v. Sylvester*, 741 Fed. Appx. 28, 31 (CA2 2018) (“[A] reasonable factfinder could not find that [the plaintiff’s] exercise of his First Amendment right . . . was the ‘but-for’ cause of his arrest.”). In any event, I would not use this thin case to state a rule that will leave press members and others exercising First Amendment rights with little protection against police suppression of their speech.

JUSTICE SOTOMAYOR, dissenting.

We granted certiorari to decide whether probable cause alone always suffices to defeat a First Amendment retaliatory arrest claim under 42 U.S.C. §1983. The Court answers that question “no”—a correct and sensible bottom line on which eight Justices agree. There is no basis in §1983 or in the Constitution to withhold a remedy for an arrest that violated the First Amendment solely because the officer could point to probable cause that some offense, no matter how trivial or obviously pretextual, has occurred.

Unfortunately, a slimmer majority of the Court chooses not to stop there. The majority instead announces a different rule: that a showing of probable cause will defeat a §1983 First Amendment retaliatory arrest claim unless the person arrested happens to be able to show that “otherwise similarly situated individuals” whose speech differed were not arrested. *Ante*, at 407. The Court barely attempts to explain where in the First Amendment or §1983 it finds any grounding for that rule, which risks letting flagrant violations go unremedied. Because the correct approach would be simply to apply the well-established, carefully calibrated

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standards that govern First Amendment retaliation claims in other contexts, I respectfully dissent.

I

As JUSTICE GORSUCH explains, the issue here is not whether an arrest motivated by protected speech may violate the First Amendment despite probable cause for the arrest; the question is under what circumstances §1983 permits a remedy for such a violation. See *ante*, at 412–413 (opinion concurring in part and dissenting in part). From that common starting point, JUSTICE GORSUCH and I travel far down the same path. I agree that neither the text nor the common-law backdrop of §1983 supports imposing on First Amendment retaliatory arrest claims a probable-cause requirement that we would not impose in other contexts. See *ante*, at 413–415. I agree that *Hartman v. Moore*, 547 U.S. 250 (2006), turned on concerns specific to malicious prosecution, and that its automatic probable-cause bar therefore does not extend to claims like this one. See *ante*, at 417. And I agree that—while probable cause has undeniable evidentiary significance to the underlying question of what motivated an arrest—some arrests are demonstrably retaliation for protected speech, notwithstanding probable cause of some coincidental infraction. See *ante*, at 416; see also *ante*, at 420 (GINSBURG, J., concurring in judgment in part and dissenting in part). Plaintiffs should have a meaningful opportunity to prove such claims when they arise.

I follow this logic to its natural conclusion: Courts should evaluate retaliatory arrest claims in the same manner as they would other First Amendment retaliation claims. Accord, *ibid.* The standard framework for distinguishing legitimate exercises of governmental authority from those intended to chill protected speech is well established. See *Mt. Healthy City Bd. of Ed. v. Doyle*, 429 U.S. 274, 287 (1977). The plaintiff must first establish that constitutionally protected conduct was a

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“‘substantial’” or “‘motivating’” factor in the challenged governmental action (here, an arrest). *Ibid.* If the plaintiff can make that threshold showing, the question becomes whether the governmental actor (here, the arresting officer) can show that the same decision would have been made regardless of the protected conduct. *Ibid.* If not, the governmental actor is liable. *Ibid.* In other words, if retaliatory animus was not a “but-for cause” of an arrest, a suit seeking to hold the arresting officer liable will fail “for lack of causal connection between unconstitutional motive and resulting harm.” *Hartman*, 547 U.S., at 260; see also *Lozman v. Riviera Beach*, 585 U. S. 87, 96 (2018).

This timeworn standard is by no means easily satisfied. Even in cases where there is “proof of some retaliatory animus,” *Hartman*, 547 U.S., at 260, if evidence of retaliatory motive is weak, or evidence of nonretaliatory motive is strong, but-for causation will generally be lacking. That is why probable cause to believe that someone was a serial killer would defeat any First Amendment retaliatory arrest claim—even if, say, there were evidence that the officers also detested the suspect’s political beliefs.

With sufficient evidence of retaliatory motive and sufficiently weak evidence of probable cause, however, *Mt. Healthy* is surmountable. Its orderly framework thus “protects against the invasion of constitutional rights” while burdening legitimate exercises of governmental authority only so far as is “necessary to the assurance of those rights.” 429 U. S., at 287; see *ante*, at 420 (opinion of GINSBURG, J.) (*Mt. Healthy* “strikes the right balance”).

II

Regrettably, the Court casts aside the *Mt. Healthy* standard for many arrests. It instead announces that courts should look beyond the presence of probable cause only when (in its view) the evidence of a constitutional violation is “objective” enough to warrant further inquiry—namely, when a